

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #01	CCRB Case #: 202102172	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 03/26/2021 1:20 AM	Location of Incident: Front of § 87(2)(b)	18 Mo. SOL 9/26/2022	Precinct: 48		
Date/Time CV Reported Fri, 03/26/2021 1:40 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/05/2021 11:24 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM John Avellino	26918	958273	PBBX SU PST
2. SGT Odani Acevedo	00104	954459	PBBX SU PST
3. PO Kieran Brennan	30990	965958	PBBX SU PST

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Austin Hieronymi	24365	957676	PBBX SU PST
2. LT Pawel Lachowski	00000	940350	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Odani Acevedo	Abuse: Sergeant Odani Acevedo stopped § 87(2)(b)	A . Substantiated
B . SGT Odani Acevedo	Force: Sergeant Odani Acevedo used physical force against § 87(2)(b)	B . Unsubstantiated
C . SGT Odani Acevedo	Abuse: Sergeant Odani Acevedo frisked § 87(2)(b)	C . Substantiated
D . SGT Odani Acevedo	Abuse: Sergeant Odani Acevedo searched § 87(2)(b)	D . Substantiated
E . SGT Odani Acevedo	Force: Sergeant Odani Acevedo used physical force against § 87(2)(b)	E . Unsubstantiated
F . SGT Odani Acevedo	Discourtesy: Sergeant Odani Acevedo acted discourteously toward § 87(2)(b)	F . Substantiated
G . SGT Odani Acevedo	Abuse: Sergeant Odani Acevedo damaged § 87(2)(b) property.	G . Substantiated
H . SGT Odani Acevedo	Discourtesy: Sergeant Odani Acevedo spoke discourteously to § 87(2)(b)	H . Unsubstantiated
I . SGT Odani Acevedo	Off. Language: Sergeant Odani Acevedo made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	I . Unsubstantiated
J . SGT Odani Acevedo	Abuse: Sergeant Odani Acevedo failed to explain the reason for a law enforcement activity to § 87(2)(b)	J . Substantiated
K . SGT Odani Acevedo	Abuse: Sergeant Odani Acevedo failed to provide § 87(2)(b) with a business card.	K . Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On March 26, 2021, § 87(2)(b) called the Internal Affairs Bureau (IAB) Command Center and filed this complaint on behalf of himself. On April 5, 2021, the complaint was received at the CCRB.

On March 26, 2021, at approximately 1 a.m., in front of § 87(2)(b) in the Bronx, Sergeant Odani Acevedo, along with Police Officers John Avellino, Austin Hieronymi, and Kieran Brennan, all from the Patrol Borough Bronx Anticrime team, stopped § 87(2)(b) (**Allegation A: Abuse of Authority, substantiated**). Sgt. Acevedo used physical force against § 87(2)(b) (**Allegation B: Force, unsubstantiated**), frisked and searched § 87(2)(b) (**Allegations C and D: Abuse of Authority, substantiated**). Sgt. Acevedo used physical force against § 87(2)(b) (**Allegation E: Force, unsubstantiated**), acted discourteously towards § 87(2)(b) (**Allegation F: Discourtesy, substantiated**), and damaged § 87(2)(b) property (**Allegation G: Abuse of Authority, substantiated**). Sgt. Acevedo spoke discourteously to § 87(2)(b) (**Allegation H: Discourtesy, unsubstantiated**), and made remarks to § 87(2)(b) based on his gender (**Allegation I: Offensive Language, unsubstantiated**). Sgt. Acevedo failed to explain to § 87(2)(b) the reason for a law enforcement activity and failed to provide § 87(2)(b) with a business card (**Allegations J and K: Abuse of Authority, substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

No arrest or summonses resulted from this incident.

On February 28, 2022, this case was sent to mediation, and on May 18, 2022 the case was returned to investigations as the complaint was no longer suitable for mediation. PO Hieronymi retired from the NYPD on April 2, 2022 (Board Review 07).

Two surveillance footage videos were received for this incident (Board Reviews 01 - 02). None of the officers recorded this incident on their police body worn cameras (Board Review 16).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Odani Acevedo stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Odani Acevedo frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Odani Acevedo searched § 87(2)(b)

The following facts are not disputed. On March 26, 2021, at approximately 1 a.m., § 87(2)(b) dressed in a brown sweater, blue jeans, a pair of white Nike Air Force sneakers (Board Review 03), a black medium sized fanny pack, which was strapped diagonally across his shoulder, and wearing clear prescription glasses, was walking northbound on § 87(2)(b) in the Bronx, when a dark unmarked sedan, which was heading northbound on 3rd Avenue, pulled over next to him. It was dark outside, but there were street and building lights that illuminated the streets. Sgt. Acevedo exited the vehicle, approached § 87(2)(b) on the sidewalk, and then frisked § 87(2)(b) fanny pack.

§ 87(2)(b) (Board Review 04) said that he was walking on the western sidewalk on 3rd Avenue, was alone, and heading home. He had his cellphone, wallet, and keys in his pants pockets, but did not recall what he had inside his fanny pack. He, however, denied having any weapons or hard objects inside the bag or his person, nor did he have anything in the bag or on his person that created a bulge. He also said that the bag hung diagonally across his side, and that he did not interact with anyone, nor did he reach inside his pockets or the bag at any point prior to the officers' approach. The unmarked vehicle, which § 87(2)(b) had not seen at any point prior, pulled over a few feet away from § 87(2)(b). Someone inside the vehicle, without identifying himself, ordered § 87(2)(b) to approach the vehicle. § 87(2)(b) who could not see inside the vehicle or know at the time that the occupants inside the vehicle were officers, continued to walk northbound. Approximately less than a minute later, Sgt. Acevedo, PO Avellino, PO Hieronymi, and PO

Brennan exited the vehicle, and approached § 87(2)(b). Sgt. Acevedo grabbed and moved his hands around the outside of § 87(2)(b) fanny pack and ignored § 87(2)(b) repeated requests about why the officers had approached him. Sgt. Acevedo then grabbed around § 87(2)(b) pants pockets, moved his hands around § 87(2)(b) lower body on the outside of his clothing, and reached inside § 87(2)(b) pockets, but did not remove anything from § 87(2)(b) pockets, nor did he recover any weapons or contraband. § 87(2)(b) did not recall whether Sgt. Acevedo opened and reached inside his fanny pack, and said all four officers walked away, returned to their vehicle, and left the scene.

Two surveillance videos were obtained from § 87(2)(b) which is a residential apartment complex. The footage freezes at 20:22 minutes (Board Review 02), but resumes at 21:40, and shows what appears to be at least three officers, who are approximately 15 to 20 feet away from the camera and thus not clearly captured, entering an unmarked vehicle, which is parked on the southbound section of the street, but facing north. It is dark outside, but there are building lights that illuminate part of the streets, and the northbound section of the street is approximately 12 feet away from the western sidewalk. There are also rows of vehicles parallel parked on both the north and south bound sections of the street. At 21:55, the unmarked vehicle leaves and heads northbound on 3rd Avenue. At 25:00, the footage freezes again, but resumes at 26:22, and shows § 87(2)(b) who is on the western sidewalk, walking northbound towards the front of the building, and speaking on his cellphone. § 87(2)(b) fanny pack is strapped diagonally across his chest, and the bag component of the pack is positioned under his left armpit towards his back (Board Review 05). It is unclear from the footage whether § 87(2)(b) has anything inside the fanny pack, but it does not appear to be heavy nor does it appear to be pulling on § 87(2)(b) clothing.

Sgt. Acevedo (Board Review 06) said that he and the three other uniformed officers were assigned to patrol the entire 40th Precinct due to a spike in shootings and robberies within the precinct. Sgt. Acevedo was seated in the rear seat on the driver's side of the officers' vehicle, which was heading northbound on 3rd Avenue, when he noticed § 87(2)(b) from across the street, approximately five to six feet away, walking with a fanny pack, which was approximately 3.5 inches thick and 4 inches tall, strapped diagonally across his chest. The fanny pack appeared very "weighted," and was pulling on § 87(2)(b) sweater. Sgt. Acevedo also observed the outline of a horizontal object, which Sgt. Acevedo could not describe, except that it was approximately 2 to 3 inches wide, sticking out of the fanny pack, and thus coupled with the weight of the bag and the crime conditions at the location, caused Sgt. Acevedo to suspect that § 87(2)(b) was in possession of a firearm. Sgt. Acevedo had no other reasons for believing that whatever object he observed inside § 87(2)(b) fanny pack was a firearm and said his view of § 87(2)(b) and the fanny pack were not obstructed in any way. He did not recall if the other officers in the vehicle made any similar observations, but said he instructed the officers to pull over next to § 87(2)(b) so they could further observe him. § 87(2)(b) immediately turned the side of his body, on which the fanny pack was hanging, away from the officers when they pulled over, and began to walk very briskly. Sgt. Acevedo acknowledged that the officers did not verbally identify themselves to § 87(2)(b) when they pulled over but said § 87(2)(b) recognized them as officers because they were dressed in uniform. § 87(2)(b) decision to turn away from the officers and walk briskly further elevated Sgt. Acevedo's suspicion that § 87(2)(b) was concealing a firearm. Sgt. Acevedo thus exited the vehicle, caught up to § 87(2)(b) and immediately frisked § 87(2)(b) fanny pack, which was still strapped around § 87(2)(b) chest. Sgt. Acevedo felt a hard horizontal object inside the fanny pack, and another "small object," that was positioned vertically on top of the horizontal object. Sgt. Acevedo could not describe the shape of the two objects, except that they were both about 2 to 3 inches tall, and that the positioning of the two objects led him to believe that § 87(2)(b) had a firearm. Sgt. Acevedo thus opened and searched the fanny pack, and recovered a 2-3 inch pocketknife, a 2-inch cigarette lighter, a small quantity of loose marijuana, and other "drug paraphernalia." Sgt. Acevedo denied frisking and searching § 87(2)(b) clothes, and said his main concern was the fanny pack. He did not recall what if

§ 87(2)(g)

it is therefore recommended that **Allegations A, C and D** be closed as substantiated.

Allegation (B) Force: Sergeant Odani Acevedo used physical force against § 87(2)(b)

Allegation (E) Force: Sergeant Odani Acevedo used physical force against § 87(2)(b)

Allegation (F) Discourtesy: Sergeant Odani Acevedo acted discourteously toward § 87(2)(b)

Allegation (G) Abuse of Authority: Sergeant Odani Acevedo damaged § 87(2)(b) **property.**

Allegation (H) Discourtesy: Sergeant Odani Acevedo spoke discourteously to § 87(2)(b)

Allegation (I) Offensive Language: Sergeant Odani Acevedo made remarks to § 87(2)(b)

based upon the gender of § 87(2)(b)

§ 87(2)(b) said that Sgt. Acevedo grabbed § 87(2)(b) fanny pack, turned § 87(2)(b) so he was facing the officers, and pushed § 87(2)(b) on his chest towards a wall that was approximately two to three feet away. § 87(2)(b) lost his balance, and thus fell and landed on a concrete garden that was next to the building. § 87(2)(b) landed on his buttocks and did not sustain any injuries. Sgt. Acevedo picked § 87(2)(b) up from the ground by his shoulders, pushed him against the wall, and that two officers, who § 87(2)(b) could not describe, held both of § 87(2)(b) arms. § 87(2)(b) denied making any movements with his body, did not resist the officers at any point during the interaction, and said he only asked why the officers were violating his rights. After Sgt. Acevedo frisked and searched him (Allegations C and D), § 87(2)(b) again asked why he was stopped/frisked/searched, and none of the officers responded. § 87(2)(b) then accused the officers of just going around and stopping kids, and Sgt. Acevedo told him to get out of there, pushed § 87(2)(b) two to three times, removed § 87(2)(b) glasses from his face, threw them towards the street, and said § 87(2)(b) was being a “pussy.” The officers then left. § 87(2)(b) returned to the street, and picked up his glasses, which were broken. § 87(2)(b) did not know why Sgt. Acevedo threw his glasses into the street and denied acting belligerently towards the officers. § 87(2)(b) did not provide the investigation with a photo of his damaged glasses.

§ 87(2)(b) in his original complaint to IAB, which he filed a few minutes after the incident, complained about officers throwing his glasses on the ground, and causing them to break. Lieutenant Pawel Lachowski from the 48th Precinct, who responded to the scene, after § 87(2)(b) complaint, acknowledged accompanying § 87(2)(b) home, and speaking with § 87(2)(b) mother about the incident because § 87(2)(b) was concerned about being out past curfew and having broken glasses (Board Review 17).

As previously discussed, none of the officers recorded this incident on their BWCs, and the surveillance footage does not capture any of the above allegations. The surveillance footage, however, at 26:50, shows § 87(2)(b) entering the camera frame and not wearing glasses after having already interacted with the officers. He has his phone in his hand and appears to be speaking on his phone. At 30:40, § 87(2)(b) who is approximately 15 to 20 feet away from the camera frame, walks towards the middle of the street, and appears to bend forward, but it is unclear if he picks anything up from the ground. (Board Review 02).

Sgt. Acevedo acknowledged grabbing § 87(2)(b) fanny pack when the officers approached and said § 87(2)(b) began to pull away and flare his arms. Two of the officers, who Sgt. Acevedo did not recall, thus held both of § 87(2)(b) arms, and guided him towards the building’s wall. None of the officers, including Sgt. Acevedo, pushed § 87(2)(b) to the ground, nor did they use any form of force against him. § 87(2)(b) on the other hand, continued to

attempt to pull away, and tried to sit on the concrete garden, but the two officers held § 87(2)(b) up. Sgt. Acevedo acknowledged that § 87(2)(b) wore glasses that day, but denied throwing § 87(2)(b) glasses into the street, nor did he or any of the other officers speak discourteously or make any offensive remarks towards § 87(2)(b).

Police officers must always maintain a higher standard of integrity than what is generally expected of others, and must treat every citizen with compassion, courtesy, professionalism, and respect, NYPD Patrol Guide Procedure 200-02 (Board Review 18).

The surveillance footage does not depict § 87(2)(b) interaction with the officers, but shows § 87(2)(b) entering the street, § 87(2)(g)

§ 87(2)(b) the footage is seemingly consistent with § 87(2)(b) testimony that he returned to the street to pick up his broken glasses, § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegations F and G** be closed as **substantiated**.

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegations B, E, H and I** be closed as **unsubstantiated**.

Allegation (J) Abuse of Authority: Sergeant Odani Acevedo failed to explain the reason for a law enforcement activity to § 87(2)(b)

Allegation (K) Abuse of Authority: Sergeant Odani Acevedo failed to provide § 87(2)(b) with a business card.

It is undisputed that Sgt. Acevedo failed to inform § 87(2)(b) the reason for the stop and did not provide § 87(2)(b) with a business card.

Sgt. Acevedo said that § 87(2)(b) was combative throughout the entire interaction, which lasted less than five minutes, and that § 87(2)(b) repeatedly yelled and said the officers had no reason for stopping him and searching his bag. Sgt. Acevedo thus felt it was best for the officers to end the interaction quickly so as to avoid any further escalation, and thus did not inform § 87(2)(b) why he was stopped nor did he provide § 87(2)(b) with a business card. Sgt. Acevedo had no other reasons for not telling § 87(2)(b) the reason for the stop or providing his business card.

During law enforcement activities, including stops, frisk, and searches, officers must provide an explanation of the reason for such enforcement activity unless providing information would impair a criminal investigation. Officers must also offer a business card to such persons at the conclusion of such activity that does not result in an arrest or summons. NYC Administrative Code 14-174b (2)(3) (Board Review 11).

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegations J and K** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 14).
- Sgt. Acevedo has been a member of service for nine years, and has been a named subject in one CCRB complaint, and one allegation, which was not substantiated, § 87(2)(g)
- PO Avellino has been a member of service for seven years, and has been a named subject in six CCRB complaints, and 16 allegations, none of which were substantiated, § 87(2)(g)
- PO Brennan has been a member of service for four years, and has been a subject in 21 allegations, one of which was substantiated:
 - Case #202002279 involved a substantiated seizure of property allegation. The Board and the NYPD both recommended and imposed formalized training.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- On February 28, 2022, this case was sent to mediation, and on May 18, 2022, the case was returned to investigation as the complaint was no longer suitable for mediation.
- As of July 12, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 1

Investigator:	<u>Enoch Sowah</u>	<u></u>	<u>7/12/22</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Mgr. Joy Almeyda</u>	<u></u>	<u>07.13.22</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date